

KC069993 KC069993

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Puente Hills Business Center III v. Lam, Case No. KC069993

ORDER ON MOTION TO VACATE DEFAULT JUDGMENT

Defendant Samuel Lam's Motion to Vacate Default Judgment Entered 1-29-2026 is DENIED.

Background

Plaintiff Puente Hills Business Center II, L.P. ("Plaintiff") alleges as follows:

Plaintiff is the owners of a commercial center known as Puente Hills Business Center ("Center"), which includes the properties located at 17700 Castleton Street, Suites 400 and 438 in the City of Industry (the "Original Premises") and 17700 Castleton Street, Suite 488 in the City of Industry (the "New Premises"). On August 14, 2015, Plaintiff, as landlord, and Samuel Lam ("Lam") and Nancy Zhang aka Nancy Zheng ("Zhang"), collectively as tenants, entered into a written lease agreement (the "Lease") wherein Lam and Zhang leased the Old Premises for a term through September 14, 2017. On January 12, 2016, Plaintiff, as landlord, and Lam, Zhang and Feng Maple Luo ("Luo"), collectively as tenants, entered into a written Amendment No. I ("1st Amendment"), wherein the parties agreed that the tenants would vacate the Original Premises and relocate to the New Premises, that the lease term would be extended through January 31, 2019 and that Luo would be added as an additional tenant. Lam, Zhang and Luo (together, "Defendants") abandoned the New Premises in January 2018 without Plaintiff's consent.

On January 31, 2018, Plaintiff filed a complaint, asserting causes of action against and Does 1-10 for: (1) Breach of Written Lease and (2) Common Count.

On April 4, 2018, Zhang's default was entered.

On October 7, 2020, a "Stipulation (a) to Dismiss Defendants Samuel Lam and Feng Maple Luo, Only, from this Action and (b) for Court to Reserve Jurisdiction to Restore Case to Civil Active List as to Said Defendants to Enforce Parties' Settlement" and order thereon was entered.

On December 8, 2020, a default judgment against Zhang was entered. On February 1, 2021, a full "Acknowledgment of Satisfaction of Judgment" was filed as to Zhang.

On January 29, 2026, judgment was entered against Lam and Luo. On February 5, 2026, Plaintiff filed (and mail-served) a "Notice of Entry of Judgment." On February 6, 2026, an amended judgment was entered against Lam and Luo. On February 9, 2026, Plaintiff filed (and mail-served) a "Notice of Entry of [Amended] Judgment." On May 28, 2026, a second amended judgment was entered against Lam and Luo. On June 1, 2026, Plaintiff filed (and mail-served) a "Notice of Entry of [Second Amended] Judgment."

Legal Standard

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . ." (Code Civ. Proc., § 473, subd. (b).)

"The burden of proof on a [section 473(b)] motion is on the moving party who must establish his position by a preponderance of the evidence." (Transit Ads, Inc. v. Tanner Motor Livery, Limited (1969) 270 Cal.App.2d 275, 279).

Discussion

Lam moves the Court for an order, pursuant to Code of Civil Procedure section 473, subdivision (b), vacating the "default judgment" entered on January 29, 2026. [FN1]

Lam first asserts that the judgment was taken against him on the basis of "surprise." "The term 'surprise,' as used in section 473, refers to some condition or situation in which a party . . . is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." (State Farm Fire & Casualty Co. v. Pitak (2001) 90 Cal.App.4th 600, 611.) Lam attests that he relied upon an email from "Plaintiff's former counsel, Patricia Rigdon" that his last and final payment "would be July 15, 2025." (Lam Decl., ¶ 3, Exh. B.) Plaintiff, however, asserts that "[t]here is no record of this attorney being counsel of record for the Plaintiff or how this person would have known when the payment deadline would be." (Opp., 4:9-10.) Lam has not filed a reply brief; as such, the Court has no further information regarding Ms. Rigdon. At any rate, it is unclear to the Court why Lam could not, or did not, calculate the final payment deadline himself, which would have been easily verifiable, and/or consult with his own counsel regarding same. The Court declines to grant the motion on the basis of "surprise."

Lam also asserts that his counsel, Kenneth Gaugh ("Gaugh"), committed excusable neglect by failing to properly notify him of his "alleged default to permit [him] to respond to Plaintiff's Motion to Set Aside Dismissal and Enforce Settlement." (Motion, 2:12-16.) First, the Court observes that the mandatory provision of section 473(b) is not applicable to obtain relief from Plaintiff's "Motion to Set Aside Dismissal and Enforce Settlement," because it is not a "default," a "default judgment" or a "dismissal." (See English v. IKON Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 144.)

Next, "the person who seeks relief upon the theory of excusable neglect must show that the neglect was excusable. The neglect to be excusable must be an act or omission which might have been committed by a reasonably prudent person under the same circumstances. Moreover, the excusable neglect must be the actual cause of the default." (Transit Ads, Inc., supra, 270 Cal.App.2d at 279 [emphasis theirs].) Here, Gaugh merely attests that he "failed to utilize Defendant Lam's alternate email address in trying to contact [him]" and "failed to overnight notice of the December 9, 2025 and January 14, 2026 hearings." (Gaugh Decl., ¶ 2.) Lam himself only vaguely attests [FN2] that he "had not responded to Attorney Gaugh's

September 2025 communications because Attorney Gaugh's email was labeled just 'Yahoo Mail' and Defendant Lam's Hotmail account is very aggressive at filtering spam emails." (Lam Decl., ¶ 5.) Lam does not unequivocally attest that he did not receive Gaugh's communications in September 2025 or thereafter, nor does Gaugh unequivocally attest that he did not mail notice of the aforesaid hearings to Lam via regular mail or otherwise provide him notice of same. The Court declines to grant the motion on the basis of "excusable neglect."

The motion is denied.

[FN1] There was no "default judgment" entered January 29, 2026. Again, the docket reflects that on January 14, 2026, Plaintiff's "Motion to Set Aside the Dismissal and Entry of Judgment" was granted and that the initial judgment was entered January 29, 2026, which has now been superseded by the second amended judgment entered May 28, 2026.

[FN2] Lam makes reference to a "9-18-2025 email from Attorney Gaugh to me and my response email" as having been attached as Exhibit C to his declaration. Exhibit C, however, is comprised of an April 6, 2026 email from Plaintiff's counsel, which was forwarded from Lam to Gaugh on April 9, 2026.